



File No.: EXP202307693

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On May 12, 2023, a complaint was filed with the Spanish Agency for Data Protection against the PROPERTY COMMUNITY ***COMMUNITY.1, with NIF ***NIF.1 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that they are a tenant of a dwelling located on the ground floor of the building where the complained Community is situated and that they enjoy the exclusive use of a communal patio. However, the complained Community, following an agreement by the Owners' Meeting, has installed a video surveillance system in its common areas, with cameras that are clearly directed towards the area of exclusive use of the communal patio that corresponds to the complainant and to areas of their home, which they believe implies an unlawful processing of their data, as these cameras are directed at spaces linked to the complainant's dwelling.

They provide images and plans of the location of the cameras and documentation related to the exclusive use of the affected patio.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 15, 2023, as evidenced by the acknowledgment of receipt in the file.

On July 17, 2023, a response was received by this Agency providing detailed information about the video surveillance system that is the subject of this complaint. The images show the field of vision of the cameras located at the back of the communal garden.

THIRD: On August 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

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I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Processing for Video Surveillance Purposes

Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section.

However, capturing images of public roads may be possible to a greater extent when necessary to guarantee the safety of strategic property or facilities or infrastructures linked to transportation, without in any case implying the capture of images from inside a private home."

Article 5 of the GDPR, "Principles relating to processing," provides in paragraph 1:

"Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')"

The GDPR regulates the lawfulness of processing in its Article 6, which determines in paragraph 1 in which cases the processing of third-party data is lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

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a) the interested party has given their consent for the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract in which the interested party is a party or for the application at their request of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation applicable to the data controller;

d) the processing is necessary to protect vital interests of the interested party or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the interested party which require the protection of personal data, particularly when the interested party is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

III

Claimed Facts

The claim concerns the installation by the Community of Property Owners of a video surveillance system in common areas, with cameras that are manifestly directed towards the area of exclusive use of the community patio that corresponds to the claiming party and to areas belonging to their home.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

The claimed Community of Property Owners has an exterior common area, referred to as "the garden." It is a strip of land about 3 meters wide that runs along the entire perimeter of the building, on all four sides, separated from the public road and adjacent buildings by a wall.

Half of this area had been used by the residents of some apartments located on the ground floor. The claimant is the tenant of one of these apartments. This half was separated from the rest by some fences.

The claimant (and the owner of the ground floor apartments) treat this space as a "common area of exclusive use."

While it is true that there were separating fences and that they used it as exclusive, the documentation (horizontal division) defines it as a common area.

There is controversy over this issue between the owner of those ground floor apartments and the Community. Among the documents submitted, there is even one that refers to a negotiation for the sale of that area to the owner in question. It is also noted that the community decided and executed the removal of the fences. There are judicial proceedings between them regarding these matters. It is in this area where the Community has installed the cameras referred to in the claim: the two cameras installed at the back, which coincide with what the claimant calls the area of exclusive use, without any documentation to support this.

The owner of those apartments located on the ground floor has access doors to that area (since they had been using it as exclusive). According to the photos, there is more than one door (there are several apartments they own).

One of the cameras captures the lintel and a door (it could be the access door to an apartment or the door in the apartment to access the garden).

The installation of those cameras, given the described situation (common area), would have been installed in common areas and not exclusive, also recording common areas.

Therefore, the system subject to the claim concerns the installation of cameras in a common area by the Community of Property Owners with the agreement of the Owners' Board for such installation. Regarding the use that the owner of the ground floor apartments has made of that area for a long time, and the controversies they maintain with the community, the AEPD has nothing to say; it will be the competent authorities that resolve the issue.

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS

***COMMUNITY.1 and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with what...

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Established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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